

BUDAPEST TREATY ON THE INTERNATIONAL RECOGNITION OF THE DEPOSIT OF MICROORGANISMS FOR THE PURPOSES OF PATENT PROCEDURE

Note by the Secretariat

I. INTRODUCTION

1. The Budapest Treaty on the International Recognition of the Deposit of Microorganisms for the Purposes of Patent Procedure (hereinafter referred to as the “Treaty”) was adopted by the Budapest Diplomatic Conference on April 28, 1977, and it entered into force on August 19, 1980. The Conference also adopted Regulations under the Treaty.

2. On May 19, 2026, the following States are party to the Treaty: Albania, Antigua and Barbuda, Armenia, Australia, Austria, Azerbaijan, Bahamas, Bahrain, Belarus, Belgium, Bosnia and Herzegovina, Brazil, Brunei Darussalam, Bulgaria, Canada, Chile, China, Colombia, Costa Rica, Croatia, Cuba, Czech Republic, Democratic People’s Republic of Korea, Denmark, Dominican Republic, El Salvador, Estonia, Finland, France, Georgia, Germany, Greece, Guatemala, Honduras, Hungary, Iceland, India, Indonesia, Ireland, Israel, Italy, Japan, Jordan, Kazakhstan, Kyrgyzstan, Latvia, Liechtenstein, Lithuania, Luxembourg, Malaysia, Mexico, Monaco, Montenegro, Morocco, Netherlands (Kingdom of the), New Zealand, Nicaragua, North Macedonia, Norway, Oman, Panama, Paraguay, Peru, Philippines, Poland, Portugal, Qatar, Republic of Korea, Republic of Moldova, Romania, Russian Federation, Rwanda, Saudi Arabia, Serbia, Singapore, Slovakia, Slovenia, South Africa, Spain, Sweden, Switzerland, Tajikistan, Trinidad and Tobago, Tunisia, Türkiye, Ukraine, United Arab Emirates, United Kingdom, United States of America, Uruguay, Uzbekistan, Viet Nam (92).

II. SUMMARY AND MAIN ADVANTAGES OF THE TREATY

BACKGROUND

3. Disclosure of the invention to the public is a generally recognized *quid pro quo* requirement for the grant of patents. Normally, an invention is disclosed by means of a written description. Where an invention involves a microorganism or other biological material (hereinafter referred to as “microorganisms”), or the use of it (in particular in agriculture, food and pharmaceutical industries), and where such microorganism is not available to the public, a written description may not be sufficient to comply with the requirements of disclosure. That is why, in the patent procedure of an increasing number of countries, it is necessary not only to file a written description but also to deposit, with a specialized institution, a sample of the microorganism. Patent offices are not equipped to handle microorganisms, whose preservation requires special expertise and equipment to keep them viable, to protect them from contamination and to protect health or the environment from contamination. Such preservation is costly. The furnishing of samples also requires specialized expertise and equipment.

4. When protection is sought in several countries for an invention involving a microorganism or the use of a microorganism, the complex and costly procedures for the deposit of the microorganism would have to be repeated in each of those countries. In order to eliminate or reduce such multiplication, the Treaty was concluded so that one deposit serves the purpose of all the deposits that would otherwise be necessary.

SUMMARY OF THE TREATY AND THE REGULATIONS

5. Substantive Provisions. The main feature of the Treaty is that a Contracting State that allows or requires the deposit of microorganisms for the purposes of patent procedure must recognize, for such purposes, the deposit of a microorganism with any “international depositary authority” (Article 3(1)(a)), irrespective of whether such authority is in or outside the territory of the said State. In other words, one deposit, with one international depositary authority, will suffice for the purposes of patent procedure before the national patent offices (called “industrial property offices” in the Treaty) of all of the Contracting States and before any regional patent organization, if such a regional organization declares that it recognizes the effects of the Treaty (Article 9(1)). The European Patent Organisation (EPO), the African Regional Intellectual Property Organization (ARIPO), the Eurasian Patent Organization (EAPO) and the African Intellectual Property Organization (OAPI) have made such a declaration.

6. What the Treaty calls an “international depositary authority” is a scientific institution—typically a “culture collection”—which is capable of storing microorganisms. In order to acquire the status of the “international depositary authority”, the Contracting State in which a depositary institution is located must furnish a declaration of assurances to the Director General of the World Intellectual Property Organization (WIPO) to the effect that the said institution complies, and will continue to comply, with certain requirements (Article 6(2)), including, in particular, that it will be available, for the purposes of the deposit of microorganisms, to any “depositor” (person, firm, etc.); that it will accept and store the deposited microorganisms; and that it will furnish samples thereof to only those entitled to such samples. The assurances may be furnished also by certain

intergovernmental industrial property organizations (Article 9(1)(a)). To date, 53 depositary institutions have acquired the status of international depositary authority.¹

7. The Regulations contain detailed provisions (Rule 11) on who is entitled—and when—to receive samples of the deposited microorganism. The depositor has a right to a sample at any time (Rule 11.2(i)). The depositor may authorize any third party (authority, natural person, legal entity) to ask for a sample, and such a third party will receive a sample upon producing such an authorization (Rule 11.2(ii)). Any “interested” industrial property office to which the Treaty applies may ask for a sample and will receive one; an industrial property office will be regarded as “interested” where the microorganism is needed for the purposes of patent procedure before the said office (Rule 11.1). Any other party may obtain a sample if an industrial property office to which the Treaty applies certifies that, under the applicable law, such a party has the right to a sample of the given microorganism; the requirements for such certification are stipulated in detail,

¹ Australia: Lady Mary Fairfax CellBank Australia (CBA); The National Measurement Institute (NMI)
Belgium: Belgian Coordinated Collections of Microorganisms (BCCM)
Bulgaria: National Bank for Industrial Microorganisms and Cell Cultures (NBIMCC)
Canada: International Depositary Authority of Canada (IDAC)
Chile: *Colección Chilena de Recursos Genéticos Microbianos* (CChRGM)
China: China Center for Type Culture Collection (CCTCC); China General Microbiological Culture Collection Center (CGMCC); Guangdong Microbial Culture Collection Center (GDMCC)
Czech Republic: Czech Collection of Microorganisms (CCM)
Finland: VTT Culture Collection (VTTCC)
France: *Collection nationale de cultures de micro-organismes* (CNCM)
Germany: *Leibniz-Institut DSMZ – Deutsche Sammlung von Mikroorganismen und Zellkulturen GmbH* (DSMZ)
Hungary: National Collection of Agricultural and Industrial Microorganisms (NCAIM)
India: Microbial Culture Collection (MCC); Microbial Type Culture Collection and Gene Bank (MTCC); National Agriculturally Important Microbial Culture Collection (NAIMCC)
Indonesia: Indonesian Culture Collection (InaCC)
Italy: Collection of Industrial Yeasts DBVPG; *Istituto Zooprofilattico Sperimentale della Lombardia e dell’Emilia Romagna “Bruno Ubertini”* (IZSLER); *Ospedale Policlinico San Martino IRCCS*
Japan: International Patent Organism Depositary (IPOD), National Institute of Technology and Evaluation (NITE); National Institute of Technology and Evaluation, Patent Microorganisms Depositary (NPMD)
Latvia: Microbial Strain Collection of Latvia (MSCL)
Mexico: *Colección de Microorganismos del Centro Nacional de Recursos Genéticos* (CM-CNRG)
Morocco: Moroccan Coordinated Collections of Microorganisms (CCMM)
Netherlands (Kingdom of the): *Westerdijk Fungal Biodiversity Institute* (CBS)
Poland: IAFB Collection of Industrial Microorganisms; Polish Collection of Microorganisms (PCM); Collection of Plasmids and Microorganisms (KPD)
Portugal: University of Coimbra Bacteria Culture Collection (UCCCB); Micoteca da Universidade do Minho (MUM)
Republic of Korea: Korean Agricultural Culture Collection (KACC); Korean Cell Line Research Foundation (KCLRF); Korean Collection for Type Cultures (KCTC); Korean Culture Center of Microorganisms (KCCM)
Russian Federation: Collection of Eubiotic and Epiphytic Microorganisms (CEEM)
Russian Collection of Microorganisms (VKM); All-Russian Collection of Industrial Microorganisms (VKPM)
Slovakia: Culture Collection of Yeasts (CCY)
Spain: *Banco Español de Algas* (BEA); *Colección Española de Cultivos Tipo* (CECT)
Switzerland: Culture Collection of Switzerland AG (CCOS)
United Kingdom: CABI Bioscience, UK Centre (IMI); Culture Collection of Algae and Protozoa (CCAP); European Collection of Cell Cultures (ECACC); National Collection of Type Cultures (NCTC); National Collection of Yeast Cultures (NCYC); National Collections of Industrial, Food and Marine Bacteria (NCIMB); National Institute for Biological Standards and Control (NIBSC)
United States of America: Agricultural Research Service Culture Collection (NRRL); American Type Culture Collection (ATCC); Provasoli-Guillard National Center for Marine Algae and Microbiota (NCMA)

to ensure that the maximum extent of caution will be exercised by the industrial property office before it issues a certification (Rule 11.3(a)).

8. The Treaty and the Regulations also contain provisions allowing for what is called a “new” deposit in certain circumstances in which samples of the originally deposited microorganisms can no longer be furnished (Article 4); permitting the termination or limitation of the status of an international depositary authority, where the authority has not complied or no longer fully complies with its assumed duties (Article 8); requiring that all microorganisms deposited with an international depositary authority be transferred to another such authority if the former is about to cease functioning as such (Rule 5.1); regulating the issuance of receipts by the international depositary authority to attest the acceptance of a deposit (Rule 7); providing for the testing of the viability of the deposited microorganisms and the issuance of viability statements (Rule 10); allowing the international depositary authority to charge a fee for each deposit, that fee covering the minimum 30 years during which the deposited microorganism must be stored (Rules 9 and 12); providing for a special status and a special role for certain intergovernmental organizations (Article 9).

9. Administrative Provisions. The States party to the Treaty constitute a Union (“the Budapest Union”) (Article 1). The Budapest Union has an Assembly consisting of the States members of the Union, the main tasks of the Assembly being to deal with all matters concerning the maintenance and development of the Union and the implementation of the Treaty (Article 10(2)), including the powers to amend certain provisions of the Treaty (Article 14), to amend the Regulations (Article 12(3)), and to take away or limit the status of any given international depositary authority (Article 8(1)). Certain administrative tasks are entrusted to the International Bureau of WIPO (Article 11). The possibility of amending the Treaty in revision conferences is also provided for (Article 13).

10. Guide to the Deposit of Microorganisms under the Budapest Treaty. The Guide presents, in a systematic manner, information on the procedures and requirements concerning the deposit of microorganisms. It gives practical advice to persons depositing microorganisms for patent purposes, on the one hand, and to anyone wishing to obtain samples of such microorganisms, on the other hand. It is regularly updated and can be consulted on the WIPO website at: www.wipo.int/budapest/en/index.html.

MAIN ADVANTAGES OF THE TREATY

11. By acknowledging the multiple legal effect of a single deposit, the Treaty makes the patent procedure simpler and patenting more attractive in the States party to the Treaty, and reduces the biosafety risk of transferring microorganisms into several countries. The Treaty is primarily advantageous to the depositor who is an applicant for patents in several countries; the deposit of a microorganism under the procedures provided for in the Treaty will reduce costs and strengthen security for the depositor. It will reduce the costs because, instead of depositing the microorganism in each and every country in which the depositor files a patent application referring to that microorganism, deposit of the microorganism can be made only once, with one depositary institution. Consequently, the fees and costs entailed by a deposit will be avoided in all but one of the countries in which the depositor seeks protection. In many cases the depositor may be able to deal with an international depositary authority located in the same country or in the same geographical region, in their own language, and if the payment of the fee is required, to use the local currency for such payment; in other words, the depositor will be able to avoid dealing with distant authorities, in foreign currencies and in foreign languages. The depositor will probably have a natural trust in the authority carefully preserving the viability of the deposited microorganism and furnishing samples only to those who are entitled to receive them under the applicable rules concerning public access to deposited microorganisms.

12. The security of the depositor is increased by the fact that, for an institution to become an international depositary authority, solemn assurances as to the seriousness and continued existence of that institution must be given; such assurances must be given by a State or by an intergovernmental organization, and they are addressed to all the Contracting States of the Budapest Union. Consequently, it may be expected that the assurances will be strictly respected, all the more so since, if they are not so respected, the Contracting States may take away from the defaulting institution the status of international depositary authority.

13. It is to be noted that the Treaty does not require Contracting States to establish an international depositary authority. Presently, 28 out of 92 Contracting States have established at least one international depositary authority. However, the establishment of an international depositary authority in a Contracting State may reduce the need for transnational deposit and movement of material and facilitate the availability of deposited material within the country.

14. The Regulations under the Budapest Treaty regulate access to the deposited material by third parties, who may be able to use the deposited material in accordance with the applicable national or regional law, for example, for research and development (R&D) purposes. The Regulations also guarantee the traceability of any samples furnished to third parties, both domestically and internationally. These features facilitate transparency regarding access to genetic material in the framework of patent procedures.

15. The Treaty contains no financial provisions. No State can be requested to pay contributions to the International Bureau of WIPO on account of its membership in the Budapest Union.

III. RATIFICATION OF AND ACCESSION TO THE TREATY

16. Any State member of the International (Paris) Union for the Protection of Industrial Property may become party to the Budapest Treaty (Article 15(1)).

17. The States that have signed the Treaty may become party to it by depositing an instrument of ratification. Those that have not signed it may become party to it by depositing an instrument of accession.

18. Instruments of ratification or accession are to be deposited with the Director General of WIPO (Article 15).

19. A model instrument of accession is attached to this Note (see Annex).

[Annex follows]

MODEL

INSTRUMENT OF ACCESSION TO THE BUDAPEST TREATY
ON THE INTERNATIONAL RECOGNITION OF THE DEPOSIT
OF MICROORGANISMS FOR THE PURPOSES OF PATENT PROCEDURE

(to be deposited with the Director General of WIPO in Geneva)

The Government of [name of State] hereby declares that [name of State] accedes to the Budapest Treaty on the International Recognition of the Deposit of Microorganisms for the Purposes of Patent Procedure, done at Budapest on April 28, 1977, and amended on September 26, 1980.

Done at, on, 202..

Signature *

(Seal)

* The instrument should be signed by the Head of State, the Head of Government or the Minister for Foreign Affairs.